Hustle Hive CIC – Parent and Learner Privacy Notice

Effective from October 2026. Next review September 2027.

This notice explains what information we collect about children, young people and their parents and carers, why we need it, who we share it with, how long we keep it and what your rights are. It covers everyone who takes part in our alternative provision, holiday clubs, Maker Days and workshops.

1. Who we are

Hustle Hive CIC is a community interest company running a makerspace and enterprise hub in Darlington. We are the data controller for the information we collect, which means we decide how it is used and are responsible for keeping it safe.

Organisation	Hustle Hive CIC, company no. 16691281
Address	Unit 6 Paramo House, Denmark Street, Darlington, DL3 0LP
ICO registration number	ZC268067
Data protection lead	Kieron Davis, Director (kieron@hustlehive.co.uk)
Designated Safeguarding Lead	Gavin Copland, Director (gavin@hustlehive.co.uk)

When a school or local authority places a learner with us, it is also a data controller for the information it shares with us. It has its own privacy notice.

2. What information we collect

About learners and children:

- **Personal details:** name, date of birth, address, gender, school and year group, photographs.

- **Contacts:** parent or carer details, emergency contacts, and who is allowed to collect a child.
- **Education:** attendance, progress, achievements, work produced, behaviour and placement information.
- **Special educational needs and disabilities:** SEND, EHCPs, support plans, communication needs and adjustments.
- **Health:** medical conditions, allergies, medicines, dietary needs, healthcare plans, accidents and first aid.
- **Safeguarding:** concerns, disclosures, risk assessments, and the involvement of children's services or other agencies.
- **Online activity:** alerts and reports from classroom.cloud on our laptops (see section 5).
- **Equality information,** such as ethnicity, but only if you choose to give it.

About parents and carers: names, contact details, relationship to the child, booking and payment records, and messages to and from us.

3. Where it comes from

Most information comes from you, through booking forms, admission meetings and conversations. For learners placed with us, we also receive information from the commissioning school or local authority, and sometimes from previous schools, SEND, health or social care professionals, or the police. We only ask for what we need to provide a safe and suitable place.

4. Why we use it and our legal reasons

Data protection law says we must have a lawful reason for using personal information. For sensitive information, such as health, SEND and safeguarding, we also need an additional legal condition, such as safeguarding children or providing education and care.

What we use it for	Our lawful reason
Deciding whether we can meet a learner's needs, and running placements, clubs and workshops	Contract with the commissioning school or with you
Teaching, supporting and making reasonable adjustments	Contract, and providing education and care for sensitive information

What we use it for	Our lawful reason
Keeping children safe, including online monitoring and responding to concerns	Legal obligation and public interest (safeguarding children)
First aid, medicines and responding to emergencies	Contract, and protecting someone's vital interests in an emergency
Reporting attendance, progress and incidents to commissioning schools	Contract with the commissioning school
Taking payments and managing bookings	Contract with you
Using photos on our website, social media and publicity	Your consent, which you can withdraw at any time
Sending you news about future clubs and workshops	Your consent, which you can withdraw at any time
Equality monitoring and reporting to funders	Legitimate interests, using anonymous information wherever possible

5. Online monitoring

Learners use our laptops, which are managed through classroom.cloud (by NetSupport). During sessions, staff can see learners' screens and websites are filtered. If a learner types or searches for something that suggests they may be at risk, such as words linked to self-harm, bullying or exploitation, our Designated Safeguarding Lead receives an alert with a screenshot. Learners can also use a Report a Concern button to tell staff privately about a worry.

Monitoring only happens on our devices during sessions, never on personal phones or at home. Alerts are only seen by the DSL and deputy DSL, and are handled under our Safeguarding policy. NetSupport processes this information for us under a data processing agreement.

6. Who we share information with

We only share information when there is a good reason, and only what is needed.

- **Commissioning schools and local authorities:** attendance, progress, behaviour, incidents, welfare and safeguarding information for learners they have placed with us.
- **When a child may be at risk:** children's social care, the police, health professionals and other safeguarding agencies. Sometimes we have to do this without asking first, if asking could put a child at greater risk.

- **In an emergency:** the emergency services and health professionals.
- **Organisations that provide services to us:** for example our email and cloud storage provider, our booking system and classroom.cloud. They can only use the information as we instruct them.
- **Others where required:** our insurers, professional advisers and regulators. Funders, such as The National Lottery Community Fund, normally only receive anonymous information.

We never sell personal information. Your information is stored in the UK or, where a supplier stores it abroad, only with legal safeguards in place.

7. Photographs and video

We take photos and videos to record learning and celebrate achievements. We will only use photos where a child can be identified on our website, social media or publicity if you have given consent. You can give consent for some uses and not others, and change your mind at any time. Saying no will never affect a child's place. We never publish a child's full name with their photo, and we will not publish images of any child where there is a safeguarding reason not to.

8. How long we keep information

We keep information only as long as we need it, in line with our Records Retention Policy. When a placement ends, we pass relevant records back to the commissioning school or on to the learner's next setting. Safeguarding records are kept for longer than other records because the law and statutory guidance require it. When information is no longer needed, we delete or shred it securely.

9. How we keep information safe

We use secure, password-protected accounts with multi-factor authentication, restrict sensitive information to the people who need it, keep paper records locked away and train our staff. Our Data Protection Policy explains this in more detail.

10. Your rights

You have the right to:

- know how your information is used (this notice);
- ask for a copy of the information we hold about you (a subject access request);

- ask us to correct information that is wrong;
- ask us to delete or stop using information in some circumstances; and
- withdraw consent at any time, where we rely on it.

Not every right applies in every situation, for example where we must keep safeguarding records.

Information about a child belongs to the child. As children grow older and understand more, usually from around age 12, they can make requests about their own information. When a parent asks for a child's information, we consider the child's age, understanding and best interests.

To make a request, contact Kieron Davis. We will reply within one month. We may ask you to confirm your identity first.

11. Questions and complaints

If you have a question or concern about how we use information, contact Kieron Davis at kieron@hustlehive.co.uk or on 07395 828429. For safeguarding matters, contact Gavin Copland. We will acknowledge complaints within 30 days.

You also have the right to complain to the Information Commissioner's Office at ico.org.uk or on 0303 123 1113.

12. Changes to this notice

We review this notice every year and will update it if our services, systems or the law change. The latest version is always on our website.

A simple message for learners

Your information belongs to you. We need some information about you so we can teach you, support you and keep you safe. We will:

- keep it safe and only let the right people see it;
- only use it for good reasons;
- only share it when we need to;
- fix it if something we have written about you is wrong; and
- explain anything you want to know.

Our laptops show staff what is on your screen and can alert us if something you type suggests you might not be safe. This is to look after you, not to catch you out. If we are worried that you or someone else is not safe, we may have to tell people who can help.

You can always ask a member of staff about what happens to your information.